

		Attorney Trenk’s declaration suggests that he returned to work by March 2025 at the latest. He appeared remotely at a hearing on 04/07/2025 on an Order to Show Cause re: Dismissal. (ROA 28) “Illness of counsel which actually disables him from timely compliance with the statutory rules of procedure constitutes excusable neglect if he moves promptly for relief as soon as his disability terminates or attenuates to the extent that a reasonable man under similar conditions would take action for relief. [Citations.] On the other hand, it has been held that illness occurring after the time for filing answer has expired without explanation for failure to answer within the regular statutory time does not constitute excusable neglect. [Citation.] If the illness is such that there was no opportunity to obtain substitute counsel, it is excusable [citation], but contrariwise if there is opportunity to obtain substitute counsel to prevent the default from occurring [citation]. [¶] Discretion is abused in granting relief from default if the moving party's supporting affidavit or declaration fails to set forth facts sufficient to constitute grounds for relief. [Citation.]” (Transit Ads, Inc. v. Tanner Motor Livery, Ltd. (1969) 270 Cal.App.2d 275, 280–281.) Attorney Trenk’s declaration fails to explain why, after he returned to work, he failed to prosecute this case and allowed the dismissal to be entered on 06/25/2025, and therefore fails to provide evidence sufficient to establish excusable neglect. The motion is DENIED without prejudice. Court clerk to give notice.
106	De La Torre v. Peterson Bros. Construction, Inc. 2024-01398380	Motion for Terminating Sanctions Defendants Peterson Brothers Construction, Inc., Juan Zarate, Alma Sanchez, and Jessida Macias (collectively “Defendants”) seek an order for terminating sanctions against Plaintiff David Zazueta De La Torre (“Plaintiff”) in the form of striking out or dismissal of Plaintiff’s First Amended Complaint, with prejudice, on the grounds that Plaintiff has willfully and repeatedly failed to comply with discovery obligations and this Court’s

September 15, 2025 Order compelling Plaintiff to produce verified responses to Defendants' Special Interrogatories, Set One, Form Interrogatories, Set One, and Requests for Production of Documents, Set One, and pay monetary sanctions to Defendants in the total sum of \$1,665.00

CCP § 2023.010 states, in part, as follows: "Misuses of the discovery process include, but are not limited to, the following: . . . [¶] (d) Failing to respond or submit to an authorized method of discovery. . . . [¶] (g) Disobeying a court order to provide discovery."

CCP § 2023.030 provides, in part, as follows: "To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: [¶] (a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process. . . .(b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. . . .(c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence. . . .(d) The court may impose a terminating sanction by one of the following orders: [¶] (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. . . ."

Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992, explains, "The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. [Citations.] The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should 'attempt [] to tailor the sanction to the harm caused by the withheld discovery.'" [Citation.] The trial court cannot impose sanctions for misuse of the

discovery process as a punishment. [Citations.] [¶] The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” ’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.] (Footnote 5 omitted.)”

Lee v. Lee (2009) 175 Cal.App.4th 1553, 1559 states, “Code of Civil Procedure section 2023.030, subdivision (c), provides that the trial court may sanction any party engaging in a misuse of the discovery process by prohibiting that party from introducing designated matters in evidence. A failure to respond to an authorized method of discovery may constitute misuse of the discovery process. [Citation.] Nevertheless, absent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful. [Citation.]” (Emphasis in original.)

Here, on September 15, 2025, this Court granted Defendants’ discovery motions against Plaintiff. (ROA 114) Notice of Ruling was mailed to Plaintiff on 9/16/2025. (ROA 116; Decl. of Hampton ¶6.) At the time Defendants filed this Motion on January 14, 2026, no responses had been provided or sanctions paid. (Decl. of Hampton ¶7.)

On August 11, 2025, the Court granted Attorney Molly Hoot and Lipeles Law Group, APC’s motion to be relieved as counsel for Plaintiff David Zazuela De La

		Torre. (ROA 106.) The Proof of Service of that Order was filed on April 1, 2026 POS filed. (ROA 149.) This motion for terminating sanctions was originally on calendar for March 30, 2026, but continued for service on both Plaintiff and Plaintiff's counsel (in an abundance of caution). Defendants served the motion and notice of continuance on Plaintiff and Plaintiff's (now former) counsel on March 30, 2026. (ROA 145, 151.) It is unclear to this court whether Plaintiff's failure to comply with the September 15, 2025 order is willful. The court therefore orders as follows: 1. The court orders counsel for Defendants to give notice of the court's ruling to Plaintiff and Plaintiff's former counsel on or before June 5, 2026, and file proof of service of that notice. 2. The court orders Plaintiff to provide verified responses to Defendants' Special Interrogatories, Set One, Form Interrogatories, Set One, and Requests for Production of Documents, Set One, on or before June 12, 2026. These responses must be personally served or delivered by overnight delivery to be received by June 19. 3. The court orders Plaintiff to pay sanctions in the amount of \$1665.00 to Defendants no later than June 12, 2026. Payment shall be in cash, certified check, cashier's check, or similar method of payment. 4. The motion for terminating sanctions is continued to Monday, June 15, 2026, at 9:00 a.m. If item #1 above has been complied with, and items #2 and #3 above have not been fully complied with, the court will grant the motion for terminating sanctions without further notice. No further briefing will be accepted regarding the motion for terminating sanctions.
107	Elias v. Jensen 2020-01139897	Motion to Compel Answers to Form Interrogatories - GRANTED Motion to Compel Further Responses to Special Interrogatories - GRANTED Motion to Compel Production – GRANTED IN PART AND DENIED IN PART Motion to Deem Facts Admitted – GRANTED